



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 4109: safety; school procedures; criminal classification

BIASIUCCI FLOOR AMENDMENT

1. Stipulates the public safety policy must require the superintendent to provide written notification as specified to students' parents and school employees within 24 hours of any incident involving life-threatening violence, a threat of life-threatening violence or a threat of violence involving a deadly weapon or dangerous instrument that occurs in connection with the school district.
2. Asserts the written notification requirements do not require or authorize the superintendent to disclose personally identifiable information about a student involved in an incident.
3. Details notification requirements for a superintendent if a law enforcement officer who responds to an incident notifies the school district that disclosure might materially compromise a pending criminal investigation or prosecution.
4. Authorizes a superintendent to designate school administrators at each school campus who are responsible for confiscating any dangerous instrument or deadly weapon possessed by a person on school property as prescribed.
5. Removes the felonies for a superintendent and instead makes a superintendent who *knowingly or intentionally* violates the written notification requirements *without good cause* guilty of a class 1 misdemeanor.
6. Removes the felonies for school district governing board members and instead makes governing board members guilty of a class 1 misdemeanor if the governing board violates public safety policy requirements as outlined.
7. Allows a school district governing board to satisfy public safety policy requirements by adopting an emergency response plan that includes the public safety policy requirements.
8. Requires each school district to annually compile and post a public safety report on its website that includes specified information.
9. Specifies a school district is not required to include any information from any school year that begins before the general effective date in the required annual public safety report.
10. Adds legislative findings.
11. Cites this legislation as *Michael's Law*.

CH

3/3/2026

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BIASIUCCI FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 4109
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 15, chapter 1, article 5, Arizona Revised
3 Statutes, is amended by adding section 15-160.05, to read:

4 15-160.05. Public safety policy; school districts;
5 requirements; notifications; annual report;
6 posting requirement; violations; classification;
7 definitions

8 A. EACH SCHOOL DISTRICT GOVERNING BOARD SHALL ADOPT A PUBLIC SAFETY
9 POLICY THAT:

10 1. CLEARLY PRESCRIBES PUBLIC SAFETY PROCEDURES AND PROTOCOLS.

11 2. DESIGNATES THE SCHOOL DISTRICT SUPERINTENDENT AS THE
12 ADMINISTRATOR WHO IS RESPONSIBLE FOR IMPLEMENTING THE PUBLIC SAFETY
13 POLICY.

14 3. REQUIRES THE SCHOOL DISTRICT SUPERINTENDENT TO DO ALL OF THE
15 FOLLOWING:

16 (a) [NOTIFY] [PROVIDE WRITTEN NOTIFICATION TO] STUDENTS'
17 PARENTS[,] [AND] SCHOOL EMPLOYEES [AND THE COMMUNITY OF] [NOT LATER THAN
18 TWENTY-FOUR HOURS AFTER] ANY INCIDENT INVOLVING [A THREAT TO PUBLIC
19 SAFETY,] LIFE-THREATENING VIOLENCE[,] [OR] A THREAT OF LIFE-THREATENING
20 VIOLENCE [OR A THREAT OF VIOLENCE INVOLVING A DEADLY WEAPON OR DANGEROUS
21 INSTRUMENT] THAT OCCURS IN CONNECTION WITH THE SCHOOL DISTRICT. [A
22 NOTIFICATION PURSUANT TO THIS SUBDIVISION MUST INCLUDE INFORMATION ABOUT
23 THE NATURE OF THE INCIDENT AND THE SCHOOL'S RESPONSE. THIS SUBDIVISION
24 DOES NOT REQUIRE OR AUTHORIZE THE SCHOOL DISTRICT SUPERINTENDENT TO
25 DISCLOSE PERSONALLY IDENTIFIABLE INFORMATION ABOUT A STUDENT WHO IS
26 INVOLVED IN AN INCIDENT. IF A LAW ENFORCEMENT OFFICER WHO RESPONDS TO AN

1 INCIDENT DESCRIBED IN THIS SUBDIVISION NOTIFIES THE SCHOOL DISTRICT THAT
2 DISCLOSURE MIGHT MATERIALLY COMPROMISE A PENDING CRIMINAL INVESTIGATION OR
3 PROSECUTION, THE SUPERINTENDENT SHALL:

4 (i) REQUEST FROM THE LAW ENFORCEMENT AGENCY THAT IS RESPONSIBLE FOR
5 THE CRIMINAL INVESTIGATION A WRITTEN REQUEST THAT THE SCHOOL DISTRICT
6 DELAY DISCLOSURE.

7 (ii) PROVIDE THE WRITTEN NOTIFICATION REQUIRED BY THIS SUBDIVISION
8 AS SOON AS PRACTICABLE ON RECEIPT OF NOTIFICATION THAT THE INVESTIGATION
9 IS COMPLETE.]

10 (b) IMMEDIATELY NOTIFY A LAW ENFORCEMENT OFFICER IF THE SCHOOL
11 DISTRICT SUPERINTENDENT IS NOTIFIED OF OR PERSONALLY OBSERVES AN INCIDENT
12 INVOLVING LIFE-THREATENING VIOLENCE, A THREAT OF LIFE-THREATENING VIOLENCE
13 OR A THREAT OF VIOLENCE INVOLVING A DEADLY WEAPON OR DANGEROUS INSTRUMENT.
14 THIS SUBDIVISION DOES NOT LIMIT OR PRECLUDE THE REPORTING BY A SCHOOL
15 DISTRICT OR AN EMPLOYEE OF A SCHOOL DISTRICT OF A SUSPECTED CRIME PURSUANT
16 TO SECTION 15-341, SUBSECTION A, PARAGRAPH 30 OR SCHOOL DISTRICT POLICIES.

17 (c) CONFISCATE ~~[A-]~~ [OR DESIGNATE ONE OR MORE SCHOOL ADMINISTRATORS
18 AT EACH CAMPUS WHO ARE RESPONSIBLE FOR CONFISCATING ANY] DANGEROUS
19 INSTRUMENT OR DEADLY WEAPON THAT IS POSSESSED BY ANY PERSON ON SCHOOL
20 PROPERTY IN VIOLATION OF SCHOOL POLICIES OR THAT IS USED IN CONNECTION
21 WITH AN INCIDENT DESCRIBED IN SUBDIVISION (a) OR (b) OF THIS PARAGRAPH
22 UNTIL A LAW ENFORCEMENT OFFICER IS ABLE TO TAKE CUSTODY OF THE DANGEROUS
23 INSTRUMENT OR DEADLY WEAPON.

24 (d) NOTIFY A LAW ENFORCEMENT OFFICER THAT THE SCHOOL DISTRICT
25 SUPERINTENDENT CONFISCATED A DANGEROUS INSTRUMENT OR DEADLY WEAPON
26 PURSUANT TO SUBDIVISION (c) OF THIS PARAGRAPH AS SOON AS PRACTICABLE
27 FOLLOWING THE CONFISCATION.

28 B. A SCHOOL DISTRICT MAY NOT TAKE ANY RETALIATORY ACTION AGAINST AN
29 EMPLOYEE, A STUDENT'S PARENT, A STUDENT, AN AGENT OF THIS STATE OR ANY
30 OTHER PERSON FOR REPORTING A VIOLATION OF THIS SECTION.

31 [C. EACH SCHOOL DISTRICT SHALL ANNUALLY COMPILE AND POST A PUBLIC
32 SAFETY REPORT ON THE SCHOOL DISTRICT'S WEBSITE THAT INCLUDES ALL OF THE
33 FOLLOWING INFORMATION:

34 1. THE NUMBER OF LOCKDOWNS, SHELTER-IN-PLACE EVENTS AND EVACUATIONS
35 THAT OCCURRED DURING EACH OF THE THREE IMMEDIATELY PRECEDING SCHOOL YEARS.

36 2. THE NUMBER OF INCIDENTS INVOLVING A DEADLY WEAPON OR DANGEROUS
37 INSTRUMENT THAT OCCURRED IN CONNECTION WITH THE SCHOOL DISTRICT DURING
38 EACH OF THE THREE IMMEDIATELY PRECEDING SCHOOL YEARS.

39 3. THE NUMBER OF INCIDENTS THAT THE SCHOOL DISTRICT SUPERINTENDENT
40 REFERRED TO A LAW ENFORCEMENT OFFICER DURING EACH OF THE THREE IMMEDIATELY
41 PRECEDING SCHOOL YEARS.

42 4. A SUMMARY OF THE PUBLIC SAFETY POLICY ADOPTED PURSUANT TO
43 SUBSECTION A OF THIS SECTION AND A DESCRIPTION OF THE IMPLEMENTATION OF
44 THE POLICY.]

1 ~~[C.] [D.]~~ A SCHOOL DISTRICT SUPERINTENDENT WHO ~~[KNOWINGLY OR~~
2 ~~INTENTIONALLY]~~ VIOLATES THE REQUIREMENTS PRESCRIBED IN SUBSECTION A,
3 PARAGRAPH 3 OF THIS SECTION~~[-~~
4 ~~1.] [WITHOUT GOOD CAUSE]~~ IS GUILTY OF A CLASS ~~[6 FELONY IF THE~~
5 ~~VIOLATION DOES NOT RESULT IN PHYSICAL INJURY]~~ ~~[1 MISDEMEANOR]~~.
6 ~~[2. IS GUILTY OF A CLASS 4 FELONY IF THE VIOLATION RESULTS IN~~
7 ~~PHYSICAL INJURY.]~~
8 ~~[D.] [E.]~~ IF A SCHOOL DISTRICT GOVERNING BOARD FAILS TO ADOPT A
9 PUBLIC SAFETY POLICY THAT MEETS THE REQUIREMENTS PRESCRIBED BY SUBSECTION
10 A OF THIS SECTION OR IF THE SCHOOL DISTRICT GOVERNING BOARD OR ANY
11 EMPLOYEE OF THE SCHOOL DISTRICT VIOLATES SUBSECTION B OF THIS SECTION,
12 EACH MEMBER OF THE SCHOOL DISTRICT GOVERNING BOARD~~[-~~
13 ~~1. IS GUILTY OF A CLASS 6 FELONY IF THE VIOLATION DOES NOT RESULT~~
14 ~~IN PHYSICAL INJURY.~~
15 ~~2.] IS GUILTY OF A CLASS [4 felony if the violation results in~~
16 ~~physical injury]~~ ~~[1 MISDEMEANOR]~~.
17 ~~[F. A SCHOOL DISTRICT GOVERNING BOARD MAY SATISFY THE REQUIREMENTS~~
18 ~~PRESCRIBED BY SUBSECTION A OF THIS SECTION BY ADOPTING AN EMERGENCY~~
19 ~~RESPONSE PLAN PURSUANT TO SECTION 15-341, SUBSECTION A, PARAGRAPH 31 THAT~~
20 ~~INCLUDES THE REQUIREMENTS PRESCRIBED BY SUBSECTION A OF THIS SECTION.]~~
21 ~~[E.] [G.]~~ FOR THE PURPOSES OF THIS SECTION, "DANGEROUS INSTRUMENT"
22 AND "DEADLY WEAPON" HAVE THE SAME MEANINGS PRESCRIBED IN SECTION 13-105.
23 <<Sec. 2. Implementation
24 [A school district is not required to include information from any
25 school year that begins before the effective date of this act in the
26 annual public safety report required by section 15-160.05, subsection C,
27 Arizona Revised Statutes, as added by this act.]>>
28 <<Sec. 3. Legislative findings
29 [The legislature finds that:
30 1. A school district's timely notification to students' parents and
31 school employees of incidents that involve life-threatening violence,
32 threats of life-threatening violence or threats that involve a deadly
33 weapon or dangerous instrument as defined in section 13-105, Arizona
34 Revised Statutes, is essential to protect student safety.
35 2. A school district's escalation of incidents that involve a
36 deadly weapon or dangerous instrument as defined in section 13-105,
37 Arizona Revised Statutes, to law enforcement officers is ministerial and
38 not discretionary.
39 3. A school district official's knowing or intentional failure to
40 comply with escalation or notification requirements for public safety
41 incidents endangers students and undermines public trust.
42 4. Criminal classification is appropriate when a school district
43 official knowingly or intentionally fails to perform the official's public
44 safety duties as prescribed by law.]>>

1 <<Sec. 4. Short title
2 [This act may be cited as "Michael's Law".]>>

3 Enroll and engross to conform

4 Amend title to conform

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